

WATERFRONT OWNER'S GUIDE

Seawalls · Docks & Boat Lifts · Waterfront Decks

Written for waterfront owners in the Florida Keys — Key Largo, Islamorada, Marathon, Big Pine, Cudjoe and Key West.

INCLUDES: 15 QUESTIONS TO ASK EVERY CONTRACTOR

Waterfront work is the most expensive, most heavily permitted and least transparent work you will ever buy for your home. This guide gives you the part nobody hands you: who has to approve the job, which paperwork protects your money, how to check a company in about ten minutes, and what to ask before you sign.

Every local rule in this guide carries its code section and the date we verified it. Rules change. Confirm with your building department before you rely on one.

Start Here

What this guide is for

Waterfront work is the most expensive, most heavily permitted and least transparent work you will ever buy for your home. This guide gives you the part nobody hands you: who has to approve the job, which paperwork protects your money, how to check a company in about ten minutes, and what to ask before you sign. This edition covers Monroe County and the Keys, where a federal marine sanctuary, state siting rules written specifically for the Keys, and the Area of Critical State Concern designation all sit on top of the normal permit stack.

The four things that decide how your project goes

PERMITS	Up to five agencies can touch one seawall or dock. Missing one can stop work, void insurance, or surface years later when you sell.
THE CONTRACTOR	License category, insurance and workers' comp decide who pays if something goes wrong on your property.
THE PAPERWORK	Florida's lien law can make you pay twice for the same work if the right documents are missing.
THE ELEVATION	Local rules set a minimum seawall height in a specific measuring system. Build to the wrong number and the wall may not pass, or may not comply later.

How to use this guide

Read pages 3–4 before you call anyone. Take the 15 questions on pages 5–6 to every estimate. Use the ten-minute check on page 7 before you sign. Keep the closing checklist on the last page next to your final payment.

One honest caveat

Rules change, and they change city by city. Every figure in this guide is sourced, and the sources are listed so you can check them yourself. Before you sign a contract, confirm the current requirement with your building department. This guide is information, not legal or engineering advice.

Not sure where your shoreline stands?

Answer a few questions about your seawall, dock or deck and get a free Shore Score, cost estimate and the rules for your exact address. [ScoreMyShore.com](#) — free, about 2 minutes

Chapter 1

Who has to approve your project

A seawall or dock is not one permit. It is a stack. A contractor who promises to "handle the permit" should be able to name every layer that applies to your job.

WHAT IT COVERS	1. City or county building permit
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Structure, elevation, setbacks, inspections. The one that gets finaled and closed.

2. County environmental review

Work in, on or over the water. In some counties a separate license with its own clock.

3. State: FDEP

Environmental Resource Permit — or a written verification that your project is exempt.

4. State: submerged lands

The bottom of most waterways is state-owned. Building over it needs consent, sometimes a lease.

5. Federal: Army Corps

Usually handled through Florida's State Programmatic General Permit, alongside the state permit.

The exemptions homeowners can actually use

Florida law exempts several common residential projects from the state ERP. "Exempt" does not mean "no paperwork" — it means one layer gets simpler, and you should get it verified in writing.

PRIVATE SINGLE-FAMILY DOCK	1,000 sq ft over-water (500 sq ft in Outstanding Florida Waters). Roofs and canopies count. One dock per 65 ft of shoreline.
SEAWALL RESTORATION	Rebuilt in the same place, or no more than 18 inches waterward of where it was.
NEW SEAWALL BETWEEN TWO EXISTING ONES	Must adjoin both, follow the same line, and run no more than 150 feet.
FLOATING BOAT LIFT OR PLATFORM	Within a permitted slip, or up to 500 sq ft combined (200 sq ft in Outstanding Florida Waters).

Source. Florida Statutes 403.813(1); FDEP Form 62-330.050(1) requests written verification of an exemption.

Ask for the exemption in writing

A verbal "that's exempt" is worth nothing at closing. FDEP has a form for verifying one. Ask your contractor to request it, and keep the response in your permit file.

Submerged lands: the layer most owners have never heard of

A letter of consent covers one minimum-size private dock per parcel, and stabilization no more than 3 feet waterward. Structures must sit at least 25 feet inside your riparian lines (10 feet for marginal docks), unless your lot has under 65 feet of frontage. A dock may extend no more than 25% of the width of the waterway. More than 10 sq ft of state bottom per linear foot of shoreline means a lease, with fees. Source: Florida Administrative Code 18-21.004 and 18-21.005.

Chapter 2

Seven costly mistakes 1. Fixing the cap and ignoring what's behind the wall Most seawalls fail from the land side. Water and soil move through joints and cracks, the anchors (tie-backs and deadmen) corrode, and voids open behind the wall. A new cap on a wall with failing anchors buys time, not a fix. Ask what the plan is for the anchors, the drainage and the soil behind the wall — not just the part you can see.

2. Building a new wall in front of a failing one without an engineered design Putting a new wall waterward of the old one is common and sometimes correct. Done without an engineered design, it can trap the old failure behind a new face, and it can push you past the 18-inch limit that keeps your project simple at the state level.

3. The permit shortcut Unpermitted marine work is the quiet killer of closings. It surfaces in a municipal lien search, it can be uninsurable, and the fix is often removing and redoing the work. Never accept "we don't need a permit for this" without seeing it in writing from the building department.

4. Ignoring drainage Weep holes and filter fabric let water out and keep soil in. Clogged, missing or badly built drainage puts full water pressure on the wall every time the tide drops. A quote that never mentions weep holes, filter fabric or backfill material is not a complete quote.

5. Picking the material by price alone Concrete, vinyl, steel, composite and riprap each behave differently depending on soil, exposure, water depth, access and what your neighbors have. Ask why this material for this site, and what the alternative would cost over the life of the wall.

6. Hiring without checking license, insurance and permit history All three take about ten minutes to verify, and all three are public. Page 7 shows exactly where to look.

7. Waiting until after a storm After a named storm, every crew in the county is booked, emergency work gets priced accordingly, and your options narrow to whoever answers the phone. The cheapest time to deal with a wall is while it's still a maintenance problem. **Bonus mistake:** planning the wall without the dock and the deck Replacing a seawall usually means taking the dock off and putting it back. Soil loss behind the wall can undermine deck footings. Planning the three together is one mobilization, one permit cycle and one round of landscape repair instead of three.

15 questions to ask every company

Ask all fifteen, of every bidder, and write down the answers. The differences between companies show up here long before they show up in the price.

What is your Florida license number, and which category is it?

You want the state license number, not a photo of a truck decal. Marine work has its own specialty categories, and general or building contractors can also hold the scope.

Who pulls the permits — you or me?

The correct answer is the contractor. An owner-pulled permit shifts liability for code compliance onto you.

Which agencies have to approve this job?

They should be able to name every layer that applies: city, county environmental, state, submerged lands, federal.

Is my project exempt at the state level, and will you get that in writing?

See the exemption limits on page 3.

What elevation are you building to, and in which datum? "Four feet" means two different walls in NAVD88 versus the old NGVD29. Get the number and the datum in the contract.

What's your plan for the anchors and the drainage?

Tie-backs or deadmen, weep holes, filter fabric, backfill. If a quote covers only the visible face, it is not comparable to one that doesn't.

Who is doing the actual work — your crew or a sub?

Pile driving and barge work are often subcontracted. Every sub needs its own insurance and workers' comp.

Can I see your certificate of insurance and your workers' comp status?

Ask for the certificate, then verify it yourself. Page 7 shows how.

How will you get equipment to the water, and who repairs the damage?

Barge or land access, driveway and pavers, irrigation, landscaping, the neighbor's lawn. Put restoration in writing.

What's the payment schedule, and what is due before work starts?

Large deposits are a risk. Tie payments to milestones you can see: permits issued, piles set, cap poured, final inspection passed.

Will you provide lien releases with each payment?

Partial releases as you go, final releases from the contractor and every supplier before the last check. This is what stops you paying twice.

What is the warranty, in writing — on workmanship and on materials?

Ask what voids it, who honors it if the company is sold, and whether the material warranty is from the manufacturer.

What could change the price once you start?

Rock, unexpected soil conditions, utilities, seagrass findings, a deeper footing. Ask for the unit price of the likely change orders now.

How long will the permit take, and how long will the work take?

Permitting is usually the long pole. Ask for a realistic range and what typically causes delays in your city.

Who calls for the final inspection, and who confirms the permit is closed?

The final inspection is not the same as the permit being closed. Ask for the closed permit record before the final payment.

- Three answers that should end the conversation
- "You don't need a permit for that."
- "Pay cash and I'll knock off the tax."
- "Just put the permit in your name, it's faster."

A quote you can actually compare

A comparable quote names: the length and height of the structure, the elevation and the datum, the material and thickness, the anchor system, the drainage detail, the backfill, the demolition and disposal plan, what gets restored afterward, which permits are included, the payment schedule, and the warranty. If two quotes are \$30,000 apart, the answer is almost always in one of those lines.

Chapter 4 · The Ten-Minute Check

How to check a company yourself

All of this is public, free, and takes about ten minutes. Do it before you sign, not after something goes wrong.

1. License — 2 minutes Search the contractor's name or license number at the state licensing portal. Confirm the license is active, that the name matches the company on your contract, and check the discipline history. Verify a license: myfloridalicense.com/portalsearches/VerifyLicensee
File a complaint / check unlicensed activity: myfloridalicense.com

Which license covers this work?

Since 2024 Florida has statewide marine specialty categories — Marine Specialty Contractor, plus narrower seawall, bulkhead, dock and pile-driving categories. Certified general, building and residential contractors can also hold the scope. If a company offers only a county card, call that county's building department and ask whether it is still recognized.

2. Workers' compensation — 3 minutes In construction, coverage is required from the first employee. Officers and LLC members can be exempt, but an exemption covers only that named person — not the four-person crew that shows up. If an uninsured worker is hurt on your property, that can become your problem, and your homeowners policy usually will not cover it. Coverage and exemption search: dwcdataportal.fldfs.com/POCDData.aspx

3. Insurance — 3 minutes Ask for a certificate of general liability naming you as certificate holder, covering the project dates, plus certificates for every subcontractor. Then call the agency listed on the certificate and confirm the policy is in force. Certificates are the easiest document in this trade to fake. Confirm the agency is licensed: licenseesearch.fldfs.com State licensing minimums are low — \$300,000 liability for general/building/residential, \$100,000 for specialty trades. Treat them as a floor, not a target.

4. Permit history — 2 minutes Look up the company's recent permits in your local portal, and look up your own address while you're there. Open or expired permits on your property are worth finding now rather than at closing. Monroe County (incl. Key Largo): mcesearch.monroecounty-fl.gov/search/permits · Key West: etrakit.cityofkeywest-fl.gov · Marathon: marathonfl.viewpointcloud.com · Islamorada: cvportal.us/CityViewPortal

Chapter 5

The paperwork that protects your money

Florida's construction lien law can require a homeowner to pay twice for the same work — once to the contractor, and again to a supplier the contractor never paid. These documents are what prevent that.

WHY YOU CARE	Lien law warning in the contract
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- Direct contracts over
- \$2,500 on 1–4 unit
- residential property

Required by law, in capitals and bold type, signed by you. Its absence tells you how this company runs.

Recovery Fund disclosure

CONTRACTS OVER \$2,500	Points to the state fund that can pay you if a licensed contractor takes your money and abandons the job.
NOTICE OF COMMENCEMENT	Direct contracts over \$5,000

You (the owner) record it with the county and post it at the site. Payments made after it expires can be treated as improper — meaning you may have to pay again.

NOTICE TO OWNER	From subs and suppliers
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They must serve it within 45 days of starting. Every notice you receive is someone who can lien your home. Keep the list.

Releases of lien

WITH EVERY PAYMENT	Partial releases as you go; final releases from the contractor and from everyone who sent a Notice to Owner, before the final check.
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Final contractor's affidavit

BEFORE FINAL PAYMENT	States that everyone under the contract has been paid, or names who has not.
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The Recovery Fund, and the number that surprises people

If a licensed contractor causes you a financial loss and you win a judgment you cannot collect, Florida's Homeowners' Construction Recovery Fund may pay part of it. For contracts signed on or after July 1, 2024, the caps are \$100,000 per claim against a general, building or residential contractor, and \$30,000 per claim against a specialty contractor. Many marine contractors hold a specialty license, which means the lower cap applies. It is worth asking which category your contractor holds before you hand over a large deposit.

If they came to you

Florida gives buyers the right to cancel a "home solicitation sale" until midnight of the third business day after signing, and the contract must carry a "BUYER'S RIGHT TO CANCEL" notice. The catch: if you called them and asked for the estimate, the sale may not qualify. The right matters most after a storm, when crews knock on doors.

Closing the permit is part of the job

A final inspection is not the same as a closed permit. Open permits show up in title searches and can stall a sale years later. Florida law lets a property owner close a permit even if the original contractor is gone, by hiring another licensed contractor to finish and obtain the inspections, and lets local agencies close expired permits where the work was substantially completed. Do not rely on that as a plan — confirm the permit shows closed in your local portal before the final payment.

Chapter 6

Mangroves, manatees and seagrass

These rules delay more South Florida projects than anything except permitting itself — and two of them can generate fines against you, the property owner, for something a crew did.

Mangroves: the six-foot line

Never cut a mangrove below 6 feet in height, and never remove or defoliate one. An owner may trim a riparian fringe only where the mangroves are 10 feet or less before trimming. Above 10 feet, a professional mangrove trimmer is required; the ceiling is 24 feet pre-trim, and for mangroves 16 feet or taller, no more than 25% of the foliage per year. Second and later violations run up to \$100 per mangrove trimmed and \$250 per mangrove altered, and restoration obligations can run five years with 2-to-1 replanting. The "we'll open up your view" offer A crew that offers to clear the mangroves for a better view is proposing penalties and a multi-year restoration obligation that attach to your property, not theirs. Get the trimming plan in writing and confirm the trimmer's credentials.

Manatees

Standard manatee conditions are attached to essentially every in-water authorization in Florida. Crews must idle in the work area, use turbidity barriers manatees cannot get tangled in, post the required signs, and shut down all in-water operations if a manatee comes within 50 feet. Expect occasional lost hours; a contractor who has never had to stop for a manatee has probably not worked here long.

Seagrass and the bottom

State rules favor riprap, native vegetation and living shorelines over new vertical seawalls wherever feasible, and dock designs are routinely modified — narrower, higher, or moved — to avoid shading seagrass. If a survey finds seagrass or hardbottom at your site, expect the design to change. That is normal, and it is better found before the contract than after.

Elevation, and the datum trap

Elevations are measured from an agreed zero. NGVD29 is the old zero; NAVD88 is the modern one that current codes, flood maps and seawall ordinances use. The ground does not move — only the number describing it does. In South Florida the same point reads roughly 0.6 to 1.8 feet lower in NAVD88 than in NGVD29, and the offset varies by location, so it is never safe to convert with a rule of thumb. Put both in the contract "Top of cap at 5.0 ft NAVD88, verified by survey" is enforceable. "Four feet high" is not. Ask for the surveyor's elevation certificate at the end.

Chapter 7 · Your Local Rules

The Florida Keys

Nowhere else in Florida has this many layers. Keys projects are not harder to build — they are harder to approve, and the approval is where the schedule lives.

Source. State dock siting rules written only for the Keys RULE

WATER DEPTH AT THE MOORING AREA	Minimum –4 ft at mean low water, deeper for deeper-draft boats
PRIVATE RESIDENTIAL DOCK (NO LEASE)	Access dock max 4 ft wide; terminal platform max 160 sq ft and 8 ft wide

Width of the waterbody preempted

No more than 20%

BENTHIC COMMUNITIES	No approval where seagrass or similar communities are present at the mooring area, turning basin or pilings — except minimum access docks
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Dredging for access

Not permitted

DOCK LENGTH	No dock longer than 500 ft absent a specific finding
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Source. Florida Administrative Code 18-21.0041, Florida Keys marina and dock siting policies.

The sanctuary layer

The Florida Keys National Marine Sanctuary reviews construction that could affect corals — which includes seawall repairs and dock installation. The usual order is: state authorization first, then the federal Army Corps permit, then submit the complete package to the sanctuary so it can determine whether a separate sanctuary authorization is needed. A trap worth knowing Even the pre-construction resource survey can be regulated. Placing transect lines to quantify corals or seagrass is itself a restricted activity unless performed by a qualified biologist holding a sanctuary permit. Ask who is doing your survey and under what authorization.

Chapter 7 · Continued

Area of Critical State Concern

The entire Keys chain is a designated Area of Critical State Concern. Local land development rules and comprehensive plan changes only take effect after state approval, and the guiding principles expressly include protecting mangroves, coral, seagrass and wetlands. Practically, this means Keys reviewers apply shoreline and marine protections more strictly than anywhere on the mainland, and timelines run longer.

County rules

Monroe County's land development code sets the shoreline setback and local dock standards, and the section has been amended in recent years. Ask the county building department for the current text of the shoreline setback section before you design, and confirm whether your project sits in unincorporated Monroe or inside Key West, Marathon or Islamorada, which run their own permitting.

Materials and exposure

Open-water exposure, higher salinity and limestone bottom change what lasts here. Galvanized hardware that survives a decade on a mainland canal can fail much faster on an exposed Keys dock; stainless grades, pile wraps and heavier sections are common upgrades. Ask every bidder what hardware grade they are quoting, and what they would use on their own dock. Three Keys questions to add to your fifteen "Has the sanctuary been contacted, and who performed the resource survey?" "What water depth did you measure at the mooring area, and at what tide?" "What hardware grade are you quoting, and why that one for this exposure?"

Chapter 8

What to check, and when

Ten minutes twice a year and after every storm. Most expensive failures are visible months before they become emergencies.

- Seawall
- Cracks in the cap, or a gap opening between the cap and the panels
- Soft ground, sunken pavers or depressions within a few feet of the wall
- Sand fans, wet streaks or small channels at the base of the wall at low tide
- Any lean toward the water — sight down the wall from one end
- Weep holes blocked, or no weep holes at all
- Rust stains bleeding through the concrete
- Water topping the wall at king tides
- Dock and boat lift
- Pilings soft, split or thinning at the waterline
- Sections that move, sway or sag underfoot
- Loose, rotted or missing boards; lifted fasteners
- Rust on bolts, brackets, cleats and lift hardware
- Frayed lift cables, slipping gearbox, unusual motor noise
- Boat weight creeping up on you — a bigger boat on an older lift
- Any exposed or damaged wiring near the water

Waterfront deck

Railings that wobble — treat as a safety issue, not a to-do
Soft or bouncy spots underfoot
Rot where the deck meets the house (the ledger) and at the posts
Corroded hangers, screws and connectors
Footings that have settled, especially near the seawall
After a named storm in Florida Keys Photograph everything the same week, before repairs. In the Keys, also check that pilings have not been pushed or lifted, and that riprap has not migrated. Expect longer lead times for crews after a storm than anywhere on the mainland.

Glossary

Cap: the concrete beam across the top of a seawall. Tie-back / deadman: the anchor system that holds the wall against soil pressure. Weep hole: a drain that relieves water pressure behind the wall. Riprap: rock placed at the base of a wall to absorb wave energy. MHW: mean high water. NAVD88: the modern

elevation datum. ERP: the state Environmental Resource Permit. Letter of consent / lease: permission to use state-owned bottom. SPGP: the state-run federal permit path. King tide: the highest seasonal tides, usually in fall.

Before You Pay

The closing checklist

Do not release the final payment until every line is checked. Final inspection passed, and the permit shows closed in the local portal Written verification of any claimed state exemption is in your file Surveyor's elevation certificate matches the elevation and datum in the contract Final release of lien from the contractor Final releases from every supplier or sub that sent you a Notice to Owner Final contractor's affidavit Written warranty, with start date and what voids it Photos of the finished work, including the drainage and anchors before backfill Landscaping, pavers and irrigation restored as agreed Copies of all permits and approvals for your closing file

Know where your shoreline stands — free

Answer a few questions about your seawall, dock or deck. You'll get a Shore Score for each structure, a cost range for Florida Keys, and the rules that apply at your address. If something looks wrong, we'll book a free on-site inspection to take a closer look.

Sources

Florida Statutes 380.0552, 403.813, 403.9326, 489.105, 489.141, 489.143, 501.025, 553.79, 713.13, 713.015, 713.135 · Florida Administrative Code 18-21.0041, 18-21.004, 18-21.005, 61G4-15.100, 62-330.051 · Monroe County Land Development Code Chapter 118 · Florida Keys National Marine Sanctuary nearshore construction guidance (15 CFR Part 922 Subpart P) · FloridaCommerce Area of Critical State Concern program · FDEP and USACE Jacksonville District permitting pages · FWC standard manatee conditions · SFWMD vertical datum guidance.

WallDockDeck is a waterfront resource for South Florida and the Keys. On-site inspections and construction work are performed by licensed partner contractors. This guide is general information, not legal, engineering or permitting advice, and rules change — confirm current requirements with your local building department before signing a contract. Edition: September 2026.